

Mary Thien Hoang

From: Neal M. Mayer <nlayer@hmc-law.com>
Sent: Tuesday, December 08, 2015 12:47 PM
To: Mary Thien Hoang
Subject: Petition P5-15

Good afternoon, Mary

On October 13, 2015 we filed the Petition of Pacific International Lines ("PIL") and Mariana Express Lines Ltd. ("MELL") for an Exemption from Commission Regulations. The Federal Register Notice for which comments were due on November 13, 2015 resulted in no comments being filed. Thus, the Petition has been ripe for an FMC decision for almost a month.

PIL owns 65% of MELL, PIL has a majority of the Directors, and to all extents directs and controls MELL from a legal standpoint. The exemption we have sought is to apply to this situation the exemption that currently exists in 46 CFR Part 535 for a parent and it wholly owned subsidiary

This is a limited exemption, we know of no similar situation, there have been no comments filed.

PIL and MELL are unable to cooperate with each other on matters relating to joint purchasing, space sharing, pricing and similar issues notwithstanding that PIL control's MELL in the same way it would if it owned 100% of MELL

Can you assist in moving this matter along with some alacrity?

Please let me know if you have any questions.

Thanks for your assistance

Regards,

Neal

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